

LAFAYETTE COUNTY
FILED

JAN 07 2022

JEFF BUSBY
CIRCUIT CLERK

BY: D.C.

IN THE CIRCUIT COURT OF LAFAYETTE COUNTY MISSISSIPPI

CAUSE NUMBER L21-494

ON DE NOVO APPEAL FROM JUSTICE COURT

MATTHEW REARDON PLAINTIFF/APPELLANT

VS

STATE OF MISSISSIPPI DEFENDANT/APPELLEE

MOTION TO SCHEDULE HEARING FOR DE NOVO APPEAL

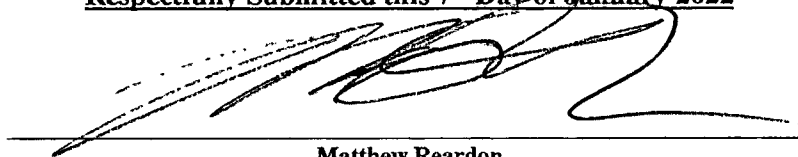
JURY DEMAND REQUESTED

Comes now Before this court, Matthew Reardon, your Appellant, whom hereby moves for an order by this court scheduling a hearing for De Novo Appeal from the Judgement rendered in Justice Court on 11/24/2021. Plaintiff/Appellant formally requests a Jury Trial in order to ensure a fair trial due to major grievances and concerns which arose during the initial trial appealed from, which have been brought forth in his motion that was tendered to this court on December 3, 2021. Plaintiff also raises additional serious concerns which he attested to under sworn affidavit and filed in this court under this very cause number on January 3rd, 2022 amounting to what he claims and has claimed amounts to a rogue deviance from the State and Federal Constitution/Bill of Rights involving (among others) lies and perjurious statements attested to at trial by Lafayette County Sheriffs Deputies including the Lafayette County Sheriff which then continued to December 7, 2021 when the Sheriff passed knowingly false and libelous information to an employee of Communicare in a bad faith attempt to seek judicial commitment of Plaintiff/Appellant

through the successful exploitation of State of Mississippi's Mental Health Laws based upon completely untrue statements given in an attempt to get rid of a citizen over constitutionally protected activity and that which was his civil duty.

Plaintiff asks this Court to take Judicial Notice that he provided notice of his intent to appeal the Justice Court Judgement which was notated in the final sentence of the final paragraph of his motion submitted on December 3rd, 2021. On December 27th in an effort to play things safe, Plaintiff brought a separate formal notice of intent to appeal de novo both to Justice Court and to put on file in Circuit Court. However, upon trying to file a copy of a formal notice of appeal, Plaintiff was told that his IFP status was being revoked for any other matters and that it would cost nearly \$150 to file his formal stamped notice despite being given an order from the trial judge approving plaintiff to proceed on appeal with IFP status. As such, Plaintiff would attach both a copy of such order given, as well as the Formal Notice of Intent to Appeal tendered to Justice Court and stamped which Plaintiff originally intended to place on file yet was denied without him paying in advance

Respectfully Submitted this 7th Day of January 2022

A handwritten signature in black ink, appearing to read 'MR', is written over a horizontal line.

**Matthew Reardon
Plaintiff/Appellant
117 CR 401
Oxford, MS 38655
matt@mattreardon.com
662-550-9752**

IN THE JUSTICE COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

CAUSE NOS. 9286631, 9290609, 9290610,
9291197, 9291198, 9291202

MATTHEW REARDON

**ORDER GRANTING MOTION TO WITHDRAWAL AS COUNSEL,
MOTION TO STAY EXECUTION OF JUDGMENT WITHOUT
BOND AND MOTION TO EXTEND TIME TO APPEAL**

HAVING COME for hearing on the motion of counsel for Matthew Reardon after judgment being entered in this cause, the court being fully advised in the premises, does hereby order and adjudge as follows:

That the honorable Mitchell O. Driskell, III, counsel for Matthew Reardon, is hereby allowed to withdrawal as counsel and his representation of Matthew Reardon is hereby terminated.

That Matthew Reardon is indigent and by reason of poverty he cannot offer security required by law and is unable to give bond to appeal the judgment against him. Mr. Reardon is allowed to appeal, if he desires to do so, and execution of judgment will be stayed without the requirement of supersededas bond.

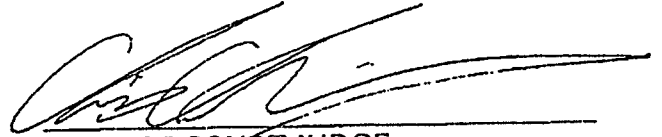
That Mr. Reardon shall have an additional ten (10) days beyond the current appeal deadline to file an appeal should he desire to do so.

SO ORDERED AND ADJUDGED, this the 2nd day of December, 2021.

**LAFAYETTE COUNTY
FILED**

DEC 03 2021

**Jill Carwyle
JUSTICE COURT CLERK
BY _____ D.C.**


JUSTICE COURT JUDGE

IN THE JUSTICE COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

CAUSE NOS. 9290609 , 9290610, 9291197 , 9291198, 9291202

MATTHEW REARDON

FORMAL NOTICE OF DEFENDANT'S INTENT TO APPEAL DE NOVO

Comes now before the court Matthew Reardon, your Defendant, whom hereby notices this court of his intention to appeal all guilty verdicts entered on the above referenced cause numbers to the Lafayette County Circuit Court for De Novo trial **WITH a Jury Demand requested.** Defendant would simultaneously raise the notion that he has filed a timely motion under MRCP Rule 59 in both the Circuit Court of Lafayette County as well as the Justice Court of Lafayette County which made reference prior to closing of Defendant's notice of appeal, and hereby files this as an official notice of appeal in order to ensure his formal notice of appeal is promptly presented before the court in good timing in a manner that best suits the court.

DEFENDANT acknowledges receipt of an order dated and entered 12/8/2021 denying his motion filed under MRCP Rule 59 further specifying Rule 1 states that the scope of *"These rules govern procedure in the circuit courts, chancery courts, and county courts in all suits of a civil nature..."*

DEFENDANT would state for the record in response that a state-court decision is contrary to federal law if the state court "Applies a rule that contradicts controlling Supreme Court authority or "if the state court confronts a set of facts that are materially indistinguishable from a decision" of the Supreme Court, but nevertheless arrives at a different result. *Williams v. Taylor*, 529 U.S. 362, 406 (2000). Further, The Supreme Court has consistently held that a conviction obtained by the knowing use of perjured testimony is fundamentally unfair, and must be set aside if there is any reasonable likelihood that the false testimony could have affected the judgment of the jury." *United States v. Agurs*, 427 U.S. 97, 103 (1976)

DEFENDANT respectfully requests reconsideration for **DISMISSAL OF CHARGES** based on all reasons listed out in his filed motion and the above cited controlling case law prior to a De Novo Appeal Commencing in Circuit Court

Respectfully Submitted this 27th Day of December 2021



Matt Reardon
Defendant
117 CR 401 Oxford, MS 38655
legal@mattreardon.com
662-550-9752

